

attorney's fees to be determined. The statute provides that "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her post offer costs and shall pay the defendant's costs from the time of the offer. (CCP § 998(c) [emphasis added].)

Defendant contends that "costs" for this purpose include attorney's fees, relying on *Scott Co. of Cal. v. Blount Inc.* (1999) 20 Cal.4th 1103, 1113. In *Scott*, however, the suit involved a contract that contained an attorney's fees provision. As the Supreme Court pointed out, "Under Code of Civil Procedure sections 1032 and 1033.5, costs include attorney fees if authorized by contract." (*Id.*, at 1106; See CCP § 1033.5(a)(10) (A)-(C) [recoverable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law."]) Thus, the court found that "The costs specified by section 1033.5 include attorney fees 'when authorized by ...(A) Contract.'" (§ 1033.5, subd. (a)(10)(A).)

Defendant offers no other authority supporting its claim that recoverable costs include attorney's fees in this case. It does not claim that the fees were incurred to enforce a contract with an attorney's fee clause under Civil Code section 1717. If the action were covered by section 1717, defendant presumably would simply move for all its attorney's fees pursuant to the contract, since it is the prevailing party, unlike the defendant in *Scott*.

The motion is denied.

19. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS**
FILED BY: KALAMAS, ALICIA
TENTATIVE RULING:

On the Court's own motion, this matter is **continued to January 29, 2026, 9:00 a.m.**

20. 9:00 AM CASE NUMBER: MSC22-00438
CASE NAME: GODFREY VS. DENARD
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET 2**
FILED BY: DENARD, DESIREE
TENTATIVE RULING:

Defendant moves to compel responses without objection to Requests for Admission, set two, specifically numbers 19-22. The underlying case involves plaintiff's claim that defendant distributed on the internet "revenge porn," containing her image. The requests are as follows:

No. 19: Admit that you knew that Jerry Law posted the video in a chat.

No. 20: Admit that you asked Jerry Law to apologize for sharing the video in a chat.

No. 21: Admit that Jerry Law used the stage name "Lucky Dollaz" before you applied for the